

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JONATHAN ROACH,

Petitioner

VS.

DEVENE TOBIE,

Respondent

) Case Number: FLD-24-397201

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Jonathan Roach (Father) and Devene Tobie (Mother) have one minor child together, Nasir Tobie (DOB 9/20/20, age 5).
- 2) On 7/17/24, a juvenile custody order was filed granting the parties joint legal custody of Nasir, with physical custody to Father and parenting time for Mother every Friday to Saturday and additional parenting time as agreed by the parties.
- 3) At a 12/11/2025 hearing, the Court ordered that Mother shall have parenting time every other Friday at 6pm to Sunday at 6pm. At a 3/3/2026 review hearing, the Court maintained the orders, with a modification regarding exchange location and ordered the parties to file and serve update declarations at least 10 days before the next review hearing on 6/2/2026.
- 4) On 5/13/2026, Mother filed an update declaration stating that the parties have been following a parenting time for schedule that gives Mother parenting time from Friday school pick up to Monday school drop off. She states that Father agreed to this parenting time schedule and said he would sign a stipulation to that effect, but has not yet done so. She asks for an order that reflects

1 the current actual parenting time schedule because it has been working well for the parties and is
2 in the child's best interests.

3 5) Father has not filed an update declaration.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.

9 2) The Court maintains the current order for joint legal custody to the parties. Mother's parenting
10 time shall be every Friday afternoon to Monday morning, with the exchanges to take place at
11 school or camp when school or camp is in session. When school or camp is not in session, the
12 exchanges shall occur on Fridays at 6pm and Mondays at 9am at Mother's home, curbside, unless
13 the parties agree in writing (text message or email is acceptable) to different times and locations.

14 3) Either party may file a new request for order if they would like further changes to be made to the
15 custody and parenting time order and are unable to reach an agreement.

16 4) The Court will prepare the Findings and Order After Hearing.

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